

2026:PHHC:086967



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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-30362-2026 (O&M)
DECIDED ON: 08.06.2026

GURPREET SINGH

....PETITIONER(S)

VERSUS

STATE OF PUNJAB AND ANOTHER

...RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Ashdeep Singh, Advocate for the petitioner(s)
Mr. Gorav Kathuria, DAG, Punjab.

SANDEEP MOUDGIL, J (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 BNSS of 2023 (corresponding section 438 Cr.P.C) praying for grant of Anticipatory Bail to the petitioner in FIR No. 00 55 dated 29.06.2024 (Annexure P-1) under Sections 420/120-B IPC 1860 (corresponding section 318/61 (1)), BNS registered at Police Station City Batala, District Gurdaspur in the interest of justice since compromise dated 07.05.2025 (Annexure P-2) has already been entered between the petitioner and the complainant/ respondent No.2.

2 Contention**On behalf of the petitioner**

At the outset, learned counsel for the petitioner submits that the matter has been settled between the parties on the basis of compromise dated 07.05.2025 (Annexure P-2), with the intervention of the respectable of the society. He further submits that the petitioner has paid an amount of Rs. 350000/- through his father to the bank account of the complainant, therefore, prays for grant of anticipatory bail to the petitioner.

Notice of motion.

On behalf of the State/complainant

On the asking of Court, Mr. Gorav Kathuria, DAG, Punjab, accepts notice on behalf of respondent/State.

Reply filed by way of an Affidavit of Sukhinder Singh, PPS, Deputy Superintendent of Police, Sub Division City Batala, Police District Batala, on behalf of respondent No.1, is taken on record. However, he submits that in view of the compromise between the parties, he has no objection if the concession of anticipatory bail is extended to the petitioner.

3. Analysis

Having given due consideration to the submissions advanced, particularly to the fact that the matter has been compromised between the parties, as well as the fact that the State Counsel has no objection if the prayer made in the present petition is allowed.

In the light of above, this Court is of the considered view that there is no valid or cogent reason to deny the bail to the present petitioner, wherein he has *bona fide* intentions and is ready and willing to join the investigation and

cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to the satisfaction of Arresting Officer/Investigating Officer. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

- (i) a condition that the person shall make himself available for interrogation by a police officer as and when required;*
- (ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;*
- (iii) a condition that the person shall not leave India without the previous permission of the Court;*
- (iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’*

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

08.06.2026
anuradha

(SANDEEP MOUDGIL)
JUDGE

Whether speaking/reasoned
Whether reportable

: Yes/No
: Yes/No